

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW,
AVERS LOGISTICS LTD,
CJ DELUZ NIGERIA LTD.

Complainants,

vs.

MARINE TRANSPORT LOGISTICS, INC.,
ALLA SOLOVYEVA,
RAYA BAKHIREV.

Respondents.

RESPONDENTS'
RESPONSE TO MOTION FOR
RECONSIDERATION

As an initial matter, Complainants' motion, being a non-dispositive motion, should not be entertained because it exceeds the 10-page limit. *Rule 502.71(d)* states: "Neither the motion nor the response may exceed 10 pages, excluding exhibits or appendices, without leave of the presiding officer." The Complainants' motion here is 15 pages.

Furthermore, Complainants have not cited any authority that would allow them to present such a motion for reconsideration more than 30 days after the Decision that is sought to be reconsidered was issued. It appears that the only Commission rules dealing with reconsideration are petitions that may be filed within 30 days after issuance of a final decision or order.

However, in this case, we are dealing with a non-final determination and a non-dispositive motion, and even if this motion were to be entertained, it does not meet the factors that apply for reconsideration of non-dispositive motions. For example, in *Federal Sav. And Loan Ins. Corp. v. Commonwealth Land Title Ins.Co.*, it was stated: "Upon a motion for reconsideration of a magistrate's determination of non-dispositive motions and other pretrial matters, a judge may

modify or set aside any portion of the Order that is clearly erroneous or contrary to law.” 130 F.R.D. 507, 508 (D.D.C. 1990). Clearly erroneous is when “although there is evidence to support [a finding], the reviewing court on the entire evidence is left with the definite and firm conviction that a mistake has been committed.” *Id.* As will be seen below, even if reconsideration is granted, the Complainants do not come close to meeting this standard.

In this case, the Order at issue is dated May 6, 2021, which was issued more than 30 days before the instant motion for reconsideration was filed on June 17, 2021. The motion also claims that it is seeking reconsideration of the June 11, 2021 Order; however, it is submitted that this is an indirect way of seeking reconsideration of the May 6th, 2021 Order, which should not be allowed, since the June 11, 2021 Order requires briefing and explicitly states that “No further discovery will be ordered.” Furthermore, the June 11, 2021 Order found that a joint status report is not a motion, and such determination cannot be said to be clearly erroneous or contrary to law as no good faith argument can be made that would stand for the proposition that a joint status report is equivalent of a motion.

As to the four vehicles and a separate container at issue in this motion, the following documents were produced. As to any additional documents, Complainants have not demonstrated its relevancy and do not explain why, having subpoena power, they could not obtain such from governmental or private entities.

Vin No. Ending in 6993

Complainants claim they did not receive any shipping-related documents as to this vehicle. This is because this car was never shipped — it was disposed of as “Junk” on June 7, 2019, as delineated in MTL’s answers to interrogatory #4 (Docket Entry #19). Supporting document of such release was provided to Complainants and attached here as Exhibit “1.”

Vin No. Ending in 5968

Complainants claim they did not receive any shipping-related documents as to this vehicle. This is because this car was never shipped — it was disposed of as “Junk” on June 7, 2019, as delineated in MTL’s answers to interrogatory #4. Supporting document of such release was provided to Complainants and is found here in Exhibit “1.”

Vin No. Ending in 0283

MTL’s answer to interrogatory #4 states that this vehicle was released to Segzymoore Auto Lounge on April 12, 2018. The Cargo Release document was provided to Complainants and is contained in Docket Entry #19, page 66 of the Appendix to Response to Cross Motion. Attached here as Exhibit “2.” Complainants were free to subpoena the documents from Segzymoore but do not explain why they did not make any effort to subpoena such.

Vin No. Ending in 2288

MTL’s answer to interrogatory #4 states that this car was released to DMD Auto Sales and Export Service, with the Doc Receipt date of May 14, 2018. Attached as Exhibit “3.” Complainants were free to subpoena the documents from DMD Auto Sales. DMD paid the outstanding storage charges to MTL that Complainants owed to MTL.

Container #TCNU 2645133 (MTL BOL#41677), Exhibit B of the Complaint.

As to this container, I would like to briefly draw the Court’s attention to the following facts and exhibits (which Mr. Nussbaum did not provide, and this issue will be fully briefed in MTL’s opposition brief), which will demonstrate that Complainants have no good faith basis for requesting any documents given the fact that Complainants refused to pick up the vehicles when such were delivered to them before they filed this case with the Federal Maritime Commission.

On June 15, 2018, Mr. Nussbaum wrote: “My client maintains his request (which was made before you and I first spoke) that the vehicles be released.” (Exhibit “4”)

On June 22, 2018, I wrote to Mr. Nussbaum and informed him that I made sure that the vehicles would be released to Complainants even without them having to make payments for outstanding invoices. (Exhibit “5”). However, irrespective of such, Complainants refused to pick up the vehicles and came up with some nonsense as to why they would not pick up the containers: “Please tell Alla, that due to the situation in Nigeria, my client feels as though he is in danger and has no choice but to contact Interpol and have that person interrogated (Exhibit “6”).

By “that person”, Complainants meant Mr. Andre Bou Jaoude from ALJ forwarders who confirmed that Complainant, Mr. Chinedu, refused to pick up the vehicles. Docket Entry #19, Appendix page 56, attached here as Exhibit “7.”

It is being submitted that this interest with AES declarations, instead of obtaining possession of Complainants’ own property — which was delivered to Complainants irrespective of the fact that they owed more than \$70,000 in outstanding storage charges — demonstrates bad faith, not only in bringing this case, where they waived depositions of any of the Respondents, but also in trying to obtain documents for some other purpose than resolving this dispute, which could and should have easily been resolved back in June of 2018.

Finally, it is submitted that MTL fully complied with the Order as to storage invoices, and such production is contained here as Exhibit “8.”

As a result of the foregoing, the Complainants’ motion should be denied and the deadlines contained in the June 11, 2021 Order should stand.

Dated: June 19, 2021

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Garry Pogil", written over a horizontal line.

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